



CHAPTER lxxv.

An Act to transfer to the mayor aldermen and burgesses of the borough of Widnes the undertaking of the Widnes and Runcorn Bridge Company and to confer powers on them with respect thereto and for other purposes. A.D. 1911.
[18th August 1911.]

WHEREAS the borough of Widnes in the county palatine of Lancaster is a municipal borough (herein-after called "the borough") under the local government of the mayor aldermen and burgesses of the borough of Widnes (herein-after called "the Corporation") and the Corporation acting by the town council are the urban district council for the borough:

And whereas by the Widnes and Runcorn Bridge Act 1900 (in this Act called "the principal Act") the Right Honourable Sir John Tomlinson Brunner Baronet (in this Act called "Sir John Brunner") and other the persons named therein were incorporated into a company by the name of the Widnes and Runcorn Bridge Company (in this Act called "the Company") and such Company were authorised to make work use and maintain a transporter bridge (in this Act called "the bridge") over the River Mersey and the Manchester Ship Canal commencing on the northern side of the River Mersey in the borough and terminating on the southern side of the said ship canal in the township of Runcorn in the county of Chester such bridge being intended for the purpose of transporting waggons carriages passengers animals goods and merchandise over and across the said river and canal by means of a platform or car suspended from the bridge and worked by suitable machinery and the Company were also authorised to raise capital to the amount of one hundred thousand pounds and to borrow on mortgage of the

A.D. 1911. undertaking any sum not exceeding in the whole thirty-three thousand pounds :

And whereas the bridge has been erected and completed and for some time past has been and now is opened for public traffic :

And whereas the Company have issued and raised the whole of the capital authorised to be raised as before recited and the same has been and is fully paid and the whole of the proceeds thereof have been applied to the purposes of the undertaking of the Company :

And whereas in addition to such last-mentioned proceeds there has also been applied to the purposes of the undertaking of the Company up to the thirtieth day of June one thousand nine hundred and ten a sum of thirty-seven thousand pounds and upwards which at that date was and is still owing by the Company and which said sum as to part thereof has been advanced by way of loan to the Company by Sir John Brunner (who is also the holder of twenty-five thousand five hundred pounds of the capital of the Company) and as to the other part by means of moneys obtained by the Company from their bankers on the guarantee at the request of the Company of Sir John Brunner :

And whereas Sir John Brunner has in addition to the said loan so advanced by him as herein-before recited from time to time advanced moneys to the amount of six thousand pounds and upwards to the Company to enable them to use work and maintain the bridge :

And whereas the said moneys were so advanced and guaranteed by Sir John Brunner upon the undertaking of the Company that he should be entitled to require the Company to repay him any sums so advanced or paid by him under his said guarantee and in respect thereof within the limits of their before recited borrowing power to issue and allot to him a mortgage of the undertaking or debenture stock of the Company and the Company have not otherwise exercised their said borrowing powers :

And whereas the Company have been called upon to pay the said moneys so advanced and guaranteed as before recited and the Company are unable to discharge their before recited obligations to their bankers and Sir John Brunner ;

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And whereas the maintenance of the bridge is a matter of local and public importance in which the borough is interested and the Corporation by reason thereof and under and in pursuance of powers in the principal Act contained in that behalf them enabling have subscribed for and are now the holders of twenty-five thousand pounds of the capital of the Company:

And whereas the said Sir John Brunner has interested himself in the affairs of the Company in the manner and to the extent before recited by reason of his desire to further the public interest in the provision and maintenance of a means of communication for carriage and foot traffic between the borough and the urban district of Runcorn and the respective counties of Lancaster and Chester and in pursuance of this desire he has proposed that the Corporation should take over the undertaking of the Company as in this Act provided and has agreed that in such case he will pay the moneys due under the said guarantee and other the outstanding debts and liabilities of the Company and will forego any and all claims by him against the Company:

And whereas an agreement (set forth in the schedule to this Act) has been entered into between the Company Sir John Brunner and the Corporation for the transfer of the undertaking of the Company to the Corporation and it is expedient that the said agreement be confirmed and carried into effect as by this Act provided :

And whereas it is desirable that the Corporation should be authorised to maintain and continue the undertaking and to utilise lands and erect thereon a generating station and to borrow moneys for the said purposes as in this Act provided :

And whereas the moneys to enable the Corporation to subscribe for and hold the capital in the Company as in this Act before recited were raised by them by way of loan under the sanction of the Local Government Board and by the Widnes Corporation Act 1908 the period for repayment thereof was equated with the periods allowed for other loans of the Corporation and prescribed to be twenty-four years from the thirty-first day of March one thousand nine hundred and eight and it

A.D. 1911. is expedient that such period should be extended and made the same as for the money by this Act authorised to be borrowed :

And whereas it is desirable that the powers in the principal Act contained enabling the county councils of Lancaster and Chester and the urban district council of Runcorn to contribute to the undertaking should be amended and extended :

And whereas an estimate has been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to borrow money :—

For the purposes of the erection and equipment	£
of a generating station and the strengthening	
altering and improvement of the bridge	- 10,000

And whereas the several works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the seventh day of December one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Widnes Weekly News* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas the said resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twenty-fourth day of January nineteen hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the *Borough Funds Act 1903* have been observed :

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Short and collective titles.

Interpreta- tion.

“The bridge undertaking” means the undertaking of the Company as transferred to and the powers and authorities conferred on the Corporation by and under this Act.

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Confirmation
of agreement
and transfer
of under-
taking.

3.—(1) The agreement dated the fourth day of January one thousand nine hundred and eleven and made between the Company of the first part Sir John Brunner of the second part and the Corporation of the third part as set forth in the schedule to this Act (in this Act referred to as “the scheduled agreement”) is hereby confirmed and made binding on the parties thereto.

(2) On and from the passing of this Act the undertaking of the Company shall subject and according to the provisions of the scheduled agreement be transferred to and shall vest in the Corporation freed and discharged from all mortgages charges incumbrances debts or liabilities created by or due or owing from the Company (whether to Sir John Brunner or otherwise) and thereafter the Corporation shall be entitled to exercise and enjoy all the rights powers privileges and authorities (so far as the same are not repealed by this Act) and including the right to demand and take tolls and charges which under the provisions of the principal Act were vested in or exerciseable by the Company in relation to such undertaking but subject to the obligations imposed by the said Act (so far as the same are subsisting and capable of taking effect) as fully and effectually as if the Corporation had been named therein instead of the Company and the Corporation may also from time to time alter and improve the bridge but subject always to and in accordance with the provisions of the principal Act and this Act.

Lands for
and erection
of generating
station.

4.—(1) The Corporation may appropriate for the purposes of the bridge undertaking the lands following (that is to say):—

A piece of land in the borough of Widnes and county of Lancaster containing one hundred and fifty square yards or thereabouts belonging or reputed to belong to the Corporation and situate at or near the south-western end or corner of the West Bank Promenade and forming part of that promenade and may extinguish all rights of way (if any) over such land.

(2) The Corporation for the purpose of transporting the platform or car under and along the bridge and of lighting the bridge (but subject to the provisions of section 33 (Special provisions as to the use of electric power) and section 34 (For protection of Postmaster-General) of the principal Act) may on the lands in this section herein-before described erect maintain and use a station for producing generating and applying

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Contracts of Company to be binding on Corporation.

Books &c.
to remain
evidence.

Byelaws to
continue in
force.

Dissolution of Company.

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Contribu-
tions by
county
councils
and local
authority.

9.—(1) The Lancashire County Council the Cheshire County Council and the urban district council of Runcorn (in this Act referred to as the contributing authority or authorities) or any of them may from time to time and on such terms and conditions as may be agreed contribute and pay to the Corporation any capital sum which they may agree towards any purposes of the bridge undertaking to which capital is properly applicable or any annual or other sum which they may agree toward the working using and maintenance of the bridge.

(2) The said county councils may respectively borrow any capital sum to be contributed by them as aforesaid subject to and in accordance with the provisions of the Local Government Act 1888 as if such contribution were a purpose of that Act and the urban district council of Runcorn may borrow any capital sum to be contributed by them as aforesaid subject to and in accordance with the Public Health Act 1875 as if such contribution were a purpose of that Act.

(3) Any contribution or payment under or by virtue of the provisions of this section for which the said county councils may become liable shall be paid out of the county fund and in the case of the Lancashire County Council may if they think fit be made a special county purpose and be charged to the hundred bridge account of the hundred of the county in which the bridge is partly situate and any such contribution or payment for which the urban district council of Runcorn may become liable shall be paid out of the district fund and general district rate of the district.

(4) The Corporation and the contributing authorities may respectively enter into an agreement with respect to the matters aforesaid and by such agreement may provide for the constitution by the Corporation and any contributing authority or authorities of a joint committee for the management of the bridge undertaking or of the bridge and for the appointment by any or all of the contributing authorities of one or more representatives upon such joint committee or upon a committee appointed by the Corporation for the management of the bridge undertaking or of the bridge or for any surplus or deficiency in the revenue of the bridge undertaking to be shared jointly between the Corporation and any or all of the contributing authorities in such shares or proportions as shall be agreed and may also make provision with respect to the quorum proceedings and

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place of meeting of any such committee and for the chairman at any meeting of such committee to have a second or casting vote.

(5) The clerk to the contributing authority shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any money raised under this Act and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk to the contributing authority shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(6) If it appears to the Local Government Board by that return or otherwise that the contributing authority have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than the purposes authorised the Local Government Board may by order direct that the sum in

A.D. 1911. such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to
borrow.

10.—(1) The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest any sums not exceeding the following sums:—

(a) For or in connexion with the erection and equipment of a generating station and the strengthening altering or improvement of the bridge the sum of ten thousand pounds:

(b) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose.

(2) The Corporation may with the sanction of the Local Government Board borrow such further moneys as the Corporation may require for the purpose of the bridge undertaking.

(3) In calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

(4) In order to provide for the repayment of moneys borrowed under this section and the payment of interest thereon the revenue of the bridge undertaking and the district fund and general district rate are hereby made specially liable and such moneys are hereby primarily chargeable accordingly.

Periods for
payment off
of money
borrowed.

11. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say):—

As to moneys borrowed for the subscription of the capital of the Company held by them at the passing of this Act or for the purposes (a) mentioned in the section of this Act of which the marginal note is "Power to borrow" within thirty years from the date of the passing of this Act:

As to moneys borrowed for the purpose (b) mentioned in the said section within five years from the date of the passing of this Act: A.D. 1911.

As to moneys borrowed with the sanction of the Local Government Board within such periods as that Board may sanction.

12. The provisions of section 96 (Mode of raising money) of the Widnes Corporation Act 1908 shall extend and apply to all or any of the moneys which the Corporation are authorised to borrow under this Act. Mode of raising money.

13.—(1) The Corporation shall keep accounts in respect of the bridge undertaking separate from all other accounts (distinguishing therein capital from revenue) and shall apply the revenue of such undertaking as follows (that is to say):— Accounts of bridge undertaking.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly In payment of the interest on moneys borrowed for the purposes of the undertaking;

Thirdly In providing the requisite appropriations or instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking;

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest money and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding the sum of five thousand pounds which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at

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any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Corporation shall carry to the district fund so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenues or receipts of the Corporation on account of the bridge undertaking shall be made good out of the district fund and the next general district rate to be made by the Corporation shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

Repeal of
certain
sections of
principal
Act and Act
of 1908.

14. As from the passing of this Act the sections of the Acts in this section herein-after set out shall except so far as may be necessary to give effect to the provisions of the section of this Act the marginal note of which is "Dissolution of Company" be repealed (that is to say):—

The principal Act—

- Section 2 (Incorporation of general Acts);
- Section 35 (Capital);
- Section 36 (Shares not to be issued until one fifth paid);
- Section 37 (Calls on shares);
- Section 38 (Receipt in case of persons not sui juris);
- Section 39 (Power to borrow);
- Section 40 (For appointment of a receiver);
- Section 41 (Power to create debenture stock);
- Section 42 (Application of moneys);
- Section 43 (Contribution by county and local authorities);
- Section 44 (First ordinary meeting);
- Section 45 (Number of directors);
- Section 46 (Qualification of directors);

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Section 47 (Quorum);

Section 48 (First directors);

Section 49 (Power to pay interest out of capital during construction);

Section 52 (Exemption from tolls in certain cases);

Section 56 (Recovery of penalties):

The Widnes Corporation Act 1908—

Section 81 (Power of Corporation to appoint proxy to represent them).

15. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by an officer of the Corporation authorised in that behalf or by the town clerk. Informations by whom to be laid.

16. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein. Application of section 265 of Public Health Act 1875.

17. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of being liable to any rate. Judges not disqualified.

18. The provisions of section 18 (For protection of Manchester Ship Canal Company) of the principal Act shall notwithstanding anything contained in this Act continue to have full force and effect except that as from the passing of this Act the said section shall be read and have effect as if the Corporation were therein referred to instead of the Company. Saving for Manchester Ship Canal Company.

19. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act. Audit of accounts.

20.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and Inquiries by Local Government Board.

A.D. 1911. the inspectors of the Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Board any expenses incurred by the Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Board not exceeding three guineas a day for the services of such inspector.

Exempting
Officers of
Crown from
toll.

21.—(1) Without prejudice to any existing right of His Majesty nothing in this Act shall be deemed to authorise any tolls to be demanded or taken from any person when on duty in the service of the Crown or for any animal vehicle or goods the property of or when being used in the service of the Crown or from any police officer acting in the execution of his duty. The expression “the Crown” includes any Government department.

(2) If any person wilfully and with intent to defraud claims or takes the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable on summary conviction to a fine not exceeding ten pounds.

Recovery of
penalties &c.

22. Save as otherwise by this Act expressly provided all offences against the principal Act and this Act and all penalties forfeitures costs and expenses imposed or recoverable under the principal Act and this Act or any byelaws made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Expenses
of Act.

23. All the costs charges and expenses of and incident to and preparatory to the obtaining and passing of this Act or otherwise in relation thereto shall when taxed and ascertained by the taxing officer of the House of Lords or the House of Commons be paid by the Corporation in the first instance out of the district fund and general district rate but ultimately if the Corporation so determine out of money borrowed under this Act.

The SCHEDULE referred to in the foregoing Act. A.D. 1911.

WHEREAS by the Widnes and Runcorn Bridge Act 1900 (herein-after called "the Act") the Company were incorporated and authorised to make use and maintain a transporter bridge (herein-after called "the bridge") over the River Mersey and the Manchester Ship Canal commencing on the right or northern side of the River Mersey in the borough of Widnes and terminating on the left or southern side of the Manchester Ship Canal in the township of Runcorn such bridge being intended for the purpose of transporting trucks waggons carriages passengers minerals goods and merchandise over and across the said river and canal by means of a platform or car suspended from the bridge and worked by suitable machinery:

And whereas the Company were by the Act authorised to issue and they have issued capital in ten thousand shares of ten pounds each to the amount of one hundred thousand pounds and such capital has been and is fully paid:

And whereas the Company by the Act were also authorised to raise by means of borrowing on mortgage of their undertaking any sum not exceeding in the whole thirty-three thousand pounds:

And whereas the Company had incurred a total expenditure on capital account up to the thirtieth day of June one thousand nine hundred and ten of one hundred and thirty-seven thousand three hundred and **sixty-three** pounds six shillings and fourpence of which the sum of one hundred thousand pounds has been paid* out of the proceeds of issue of the said shares and the balance has been provided by means of moneys obtained by the Company partly upon loan from their bankers (Parr's Bank Limited) upon the personal

A.D. 1911. — guarantee of Sir John Brunner (herein-after referred to as "the overdraft account") and partly by means of loan direct by Sir John Brunner to the Company :

And whereas Sir John Brunner has also from time to time advanced moneys to the Company to enable them to use work and maintain the bridge :

And whereas the said guarantee was given and the said moneys were paid and advanced by Sir John Brunner upon the undertaking of the Company that he should be entitled to require the Company to repay to him any sums of money so advanced or paid by him and in respect thereof and within the limits of the before recited borrowing powers to issue and allot to him a mortgage or debenture stock to cover any sum which he might be called upon to pay in respect of the overdraft account :

And whereas Sir John Brunner is prepared to pay to Parr's Bank Limited the amount of the overdraft account whenever called upon to do so :

And whereas there is now due to Sir John Brunner as the amount of the said advances and for interest thereon the sum of twelve thousand eight hundred and thirty-nine pounds :

And whereas Sir John Brunner has required payment of the said sum of twelve thousand eight hundred and thirty-nine pounds and to be relieved from his said guarantee but the Company are unable to discharge their obligations to him in respect thereof :

And whereas the bridge is from time to time in need of alterations and repairs :

And whereas the Company having exhausted their capital powers have not the means to effect such alterations and repairs as in their opinion may be desirable for the effective use and working of the bridge :

And whereas in pursuance of the power therefor contained in the Act the Corporation subscribed for and they are now holders of two thousand four hundred and ninety-eight shares of ten pounds each in the Company and they are also entitled in equity to two other shares of ten pounds each therein and Sir John Brunner is also the holder of two thousand five hundred and fifty shares of ten pounds each in the Company :

And whereas Sir John Brunner and the other persons who were promoters of the Act originally interested themselves in the promotion of the undertaking and Sir John Brunner has made the said advances to and become responsible for the overdraft account on behalf of the Company by reason of and in the desire to meet the public necessity for a means of communication for carriage as well as foot traffic

A.D. 1911:

And whereas with the desire aforesaid Sir John Brunner has agreed that if the Corporation will take over and continue the undertaking of the Company he will forego any and all claims by him against the Company and pay the amount of the overdraft account and will pay and discharge the other debts and liabilities of the Company to the extent and in manner herein-after mentioned and the Company have accordingly agreed with the full concurrence and approval of Sir John Brunner but subject to the approval of Parliament to transfer their undertaking to the Corporation :

And whereas in order to enable the undertaking of the Company to be continued and carried on by the Corporation it has been agreed by and between the parties hereto as herein-after provided:

Now therefore it is hereby agreed by and between the parties hereto as follows:—

1. That if on or before the thirty-first day of January instant or such later date as Sir John Brunner shall permit the Corporation shall have put themselves into a position to promote and shall notify Sir John Brunner in writing under the hand of their town clerk of their intention to continue to promote in the ensuing session of Parliament a Bill to enable the Corporation to take over continue and exercise the same the undertaking of the Company and all their property effects powers rights and privileges shall if and when and so soon as the said Bill shall be passed by Parliament become and be vested in the Corporation free from all mortgages charges incumbrances debts or liabilities created by or due or owing from the Company whether to Sir John Brunner or the said bankers or otherwise and without any payment whatever by the Corporation to the Company or to Sir John Brunner and to that end Sir John Brunner hereby undertakes and agrees that he will upon demand in writing by the town clerk of the borough immediately after the said Bill shall have passed both Houses of Parliament and before the same shall receive the Royal Assent liquidate and discharge all moneys for the time being owing to the said bankers upon the overdraft account and all other the debts and liabilities of the Company existing on the date when the said Bill shall receive the Royal Assent.

2. That the Company shall retain possession of and maintain their undertaking and shall provide for and continue the regular working thereof except so far as such maintenance and working shall involve capital expenditure or expenditure for special purposes (which the Company shall in no case be bound to incur) until the said thirty-first day of January instant or such later date as aforesaid and thereafter (if the Corporation shall have notified Sir John Brunner as

A.D. 1911. aforesaid) until the said Bill shall have been passed or rejected by Parliament and Sir John Brunner shall from time to time advance to the Company such sums of money as may be reasonably required by them for that purpose not being of the nature of capital expenditure or expenditure for special purposes. Provided that in the event of the said Bill becoming law any moneys expended by Sir John Brunner and the Company or either of them on the bridge and being of the nature of capital expenditure or expenditure for special purposes between the date hereof and the vesting of the bridge in the Corporation (such expenditure being first approved in writing by the Corporation or their engineer) shall be refunded by the Corporation.

3. That the Company and Sir John Brunner shall do all such necessary acts and things as the Corporation shall reasonably require to enable this agreement to be carried into effect and shall assist by every means in their power to secure the passing of any Bill which the Corporation shall promote for this purpose during the ensuing session of Parliament.

4. That any costs and expenses incurred and to be incurred by the Corporation of and in relation to the negotiations for completion and carrying out of this agreement and the promotion of the said Bill shall be borne and paid by the Corporation and the Corporation if such Bill passes into law shall also pay the costs and expenses reasonably incurred and to be incurred by the Company of and in relation to the negotiations for and completion and carrying out of this agreement and in complying with any requests of the Corporation of and in relation to the promotion of the Bill as provided by this agreement.

5. This agreement is conditional upon the said Bill being passed into law during the ensuing session of Parliament.

6. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alterations therein or in the said Bill any party may withdraw from this agreement and on such withdrawal this agreement shall cease to have any operation or effect.

In witness whereof the Company and the Corporation have caused their respective common seals to be hereunto affixed and Sir John Brunner has hereunto set his hand and seal the day and year first before written.

Passed under the common seal
of the Widnes and Runcorn
Bridge Company in the pre-
sence of

H. WADE DEACON }
HOLBROOK GASKELL }
BEN. COOKSON }

Directors.

Secretary.

L.S.

[1 & 2 GEO. 5.] *Widnes and Runcorn Bridge*
 (Transfer) Act, 1911.

[Ch. lxxv.]

Signed (by his usual signature
of John Brunner) sealed and
delivered by the said Sir John
Brunner in the presence of } JOHN BRUNNER.

KIT. H. FLINTOFF
Silverlands Chertsey
Private Secretary.

A.D. 1911.

L.S.

The common seal of the mayor
aldermen and burgesses of the
borough of Widnes was here-
unto affixed in the presence
of

FREDERICK NEIL
Mayor.
H. S. OPPENHEIM
Town Clerk.

L.S.

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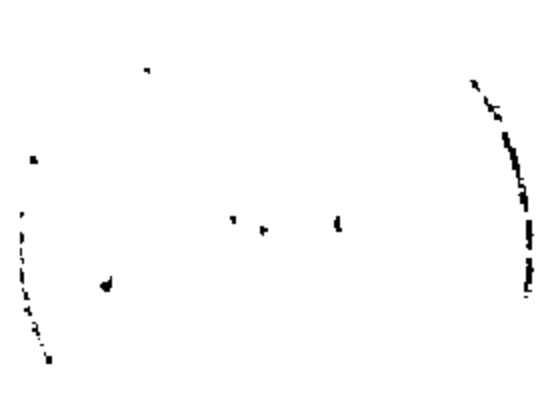
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